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Valor and Valkyries: Why the State Needs Valhalla *

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Whenever and wherever Vikings fought, they believed that the Valkyries would come. With sparks shooting from their spears and their corselets spattered with blood, the Valkyries would fly over the fighting and select the most valiant of those who died. The helmeted “Choosers of the Slain” then carried them back to Valhalla where the heroes were welcomed by Odin and his wolves. From then on, the warriors gloriously fought among themselves in and about the great hall, their wounds healing every night so that they might fight again the next day. This passed for heaven in the great age of Viking expansion, and Viking warriors drew courage from the belief that Valhalla awaited them if they were to fall in battle. The idea of an eternal reward for valor was so deeply embedded in Viking culture that warriors even asked the dead “to show” them the way to the great hall in the sky.¹

On the northern fringes of Europe in the eleventh century, a battle was an opportunity for men to join Odin and his Valkyries and that prospect made a war much more than the “continuation of politics by other means.”² Then as now, men would not have sacrificed their lives if the only purpose had been the interests of their overlords and their states. And for that reason, rulers have never claimed the right to kill or to command their citizens to kill solely for the sake of the state itself. The state has always stood for something else and something more in such claims: the historical destiny of a people, a nation, and a culture; the realization of a divine plan or order on Earth; the vanguard of a world socialist revolution; or the preservation and extension

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1. John Arnott MacCulloch, *Eddic*, Vol. II of *The Mythology of All Races*, ed. Louis Herbert Gray (New York: Marshall Jones, 1916; reprinted, New York: Cooper Square, 1964), 45, 57, 248–57, 312–13, 315.

2. This is a popular paraphrase of what Carl von Clausewitz actually wrote in *On War*. For the passages in that volume that refer to the conception “of war as an instrument or continuation of policy,” see Hugh Smith, *On Clausewitz: A Study of Military and Political Ideas* (New York: Palgrave, 2005), 101.

of democracy.³ The state has always been presented as a vehicle for the achievement of something else more fundamental and valuable than itself.

Sovereignty has thus been contingent on the state's dedication to this other, more intrinsically valuable goal. And, while states have ostentatiously dedicated themselves to such goals, citizens have always been able to judge for themselves whether their state in fact merits the sovereignty it claims. The most reliable evidence of a rejection of such claims is the public demonstration of allegiance to another claimant. In some instances that competing claimant is another state and, under conventional interpretations, we would call such a demonstration "treason." In other instances, the alternative claimant might be a revolutionary movement and we would call such a demonstration "rebellion."⁴

In both cases and, in fact, in all demonstrations of allegiance to an alternative sovereign a person puts himself at risk. This willingness to sacrifice oneself for the sake of establishing or maintaining a sovereign is thus the most basic test of sovereignty. If no one is willing to sacrifice their lives in order for the state to survive, sovereignty does not exist and there is thus no state.

On the Notion of the State

The "state" is a concept so capacious and contentious that defining what it might be almost always reveals a scholar's deepest theoretical and ideological commitments. "Class" also carries such implications, as do conceptions of "democracy" and "freedom." But even in the company of these most protean of concepts, the state seems to point to both the brightest and gloomiest of social possibilities.

3. For Clifford Geertz, the legitimacy of a ruler and of a state arise from "a deep, intimate involvement. . . in the master fictions" of the social order and the inherently sacred quality of sovereign power. By conforming their actions to the norms and principles belonging to the "sacred center" created by these master fictions, rulers can charismatically wield that sovereign power. "Centers, Kings, and Charisma: Reflections on the Symbolics of Power," in *Culture and Its Creators: Essays in Honor of Edward Shils*, ed. Joseph Ben-David and Terry Nichols Clark (Chicago: University of Chicago Press, 1977), 151, 171.

4. Such demonstrations can take place in what might seem to be, at first glance, very unlikely places. For example, revolutionary groups in Turkish prisons have conducted hunger strikes, fasting to death as an emphatic rejection of the sovereignty of the Turkish government and a fervent embrace of an alternative, at the moment only imagined, leftist political order. Those putting themselves at risk were deep inside the bowels of a prison, the most statist and most violent venue of sovereignty. Because they were under the absolute control of the Turkish state, their fasts did not impair, in material terms, the ability of the state to rule. But, in symbolic terms, as evidence of a willingness to sacrifice themselves for an alternative sovereign, these demonstrations were intolerable. So the Turkish state force fed the hunger strikers, preventing them from actually sacrificing themselves. Ayse Banu Bargu, "Martyrs of Hunger: Sovereignty in the Age of Sacrifice" (Ph.D. dissertation, Cornell University, 2008).

In many ways, contemporary interest in the nature of the state can be traced back to J. P. Nettl's "The State as a Conceptual Variable."⁵ By and large, Nettl addressed two scholarly communities in that article. In the field of international relations, he noted that the "state" was an irreducible actor, a billiard ball (to borrow what must be the most common metaphor in that field) that bounced off other billiard balls without compromising the analytic integrity of any of them. His other audience was comparative politics and, in that connection, he used the United States, along with Britain, as an indispensable foil against which the "stateness" of other nations could be measured. The United States was, more or less, the zero on the state thermometer: you could only get warmer.

With reference to the state as a conceptual variable, Nettl suggested that "there may be a case for bringing it back in." And "brought back in" it was, although there has never been common agreement on just what "in" meant in that phrase. Nonetheless, *Bringing the State Back In* became a bestseller.⁶ And the state has been with us ever since.

"Bringing the state back in" was an adoption that originally conceded custody of the state to an academic family that we now call "historical institutionalism." That custody has since been fiercely contested by another family, "rational choice institutionalism." Both of these unruly families would like to raise the child within the "institutionalist" religion, but they have very different notions of what conceptual child-rearing might entail. Neither family, I might add, no longer has much use for the child's birth name. In both cases, this child is commonly called by the name "institution" or one of its derivative formulations.⁷

Historical institutionalists have been primarily concerned with the range of preferences that can be plausibly entertained by political actors at any particular point in time. Individuals expect, everything else being equal, that the vast bulk of a political setting will be more or less identical with the last time they entered it. This political setting is comprised of things like the stability of a regime, the most intensely held preferences of political actors, and the social allocation of power. These expectations, in the first instance, dramatically narrow the range of options that individuals regard as feasible and they discard the rest (often those other options do not even occur to them). From that perspective, path dependence drives most of the action, in that shared "expectations" winnow out most alternatives even before individuals have formed preferences regarding them.

5. J. P. Nettl, "The State as a Conceptual Variable," *World Politics* 20 (1968): 559–92.

6. Peter Evans, Dietrich Rueschmeyer, and Theda Skocpol, eds., *Bringing the State Back In* (New York: Cambridge University Press, 1985).

7. Space will not permit a full discussion of the differences (and similarities) underpinning these two approaches. However, very serviceable summaries of the literature in this area have recently appeared: Kenneth A. Shepsle, "Rational Choice Institutionalism" and Elizabeth Sanders, "Historical Institutionalism," both in *The Oxford Handbook of Political Institutions*, ed. R.A.W. Rhodes, Sarah A. Binder, and Bert A. Rockman (New York: Oxford University Press, 2006), 23–38, 39–55.

These individual expectations are themselves shaped by an acute awareness of the expectations of other actors.⁸ Taken together, these mutually recognized and shared expectations make up social reality and one of the largest, most influential features of that social reality is the state. Since the consequences that attend destabilization of the path-dependent processes that underpin the persistence of the state are usually catastrophic, it is to this literature that we would resort if we wanted to enhance and/or anticipate fluctuations in the health of the state.

Rational choice institutionalists focus on how institutional rules shape preferences into collective decisions and, hence, policies, noting that institutions process preferences into decisions. Institutions are, from this perspective, strictly organized bundles of rules (and, in some instances, norms) that determine the prerogatives and opportunities of political actors. The preferences of these actors are usually assumed in their models, but there is ample room in their analysis for a statist consciousness to emerge as a powerful force in politics. The most likely places for that emergence are the career civil service, very senior members of Congress, and the policy communities that make military and foreign policy. Here the state is "brought back in" through recognition of the independent causal influence of state institutions and the consequent emergence of preferences that would not exist in the absence of those institutions. We might, for instance, interrogate this literature if we wanted to know how to design a stronger or weaker state. And here we would define a stronger state as one in which officials were more committed to an enhanced role for state institutions within a nation.⁹

8. The term *expectations* refers to the beliefs of political actors as they anticipate what others will do. When those expectations are strongly shaped by a belief that the current structure and operating principles of an institution will persist unchanged, this anticipation is self-fulfilling as actors "take-for-granted" that persistence. Thus, there is a very strong temporal dimension to the creation of preferences. During a period of rapid change in which expectations of institutional persistence are very low, the goals and ambitions of political actors will be much more unpredictable and expansive than in periods when stasis and stability are the order of the day. The analytical challenge is to somehow explain and predict these periods during which expectations of persistence are destabilized.

9. The administrative sophistication and expansive presence of a state bureaucracy are not synonymous with such a commitment. After their respective states had seceded, for example, southern postal officials ensconced in one of the most professionally competent and well-run federal bureaus simply walked outside, lowered the Union stars and stripes, ran up the Confederate stars and bars, and then returned to what they were doing before. The same thing happened in federal customs houses, armories, and courthouses throughout the South. Professionally and administratively, the federal government had never been more centralized and bureaucratically autonomous but, in terms of the sovereign claims it could make on its citizens, it was an empty shell, particularly, of course, in the South but, at least at first, in the North as well. Richard Franklin Bense1, *Yankee Leviathan: The Origins of Central State Authority in America, 1859–1877* (New York: Cambridge University Press, 1990), 101–03. On the administrative sophistication of the antebellum federal post office, see Richard R. John, *Spreading the News: The American Postal System from Franklin to Morse* (Cambridge: Harvard University Press, 1995), chap. 1.

As research families, historical institutionalists and rational choice institutionalists sometimes seem to believe that their differences are irreconcilable. However, the two families are often simply speaking past one another. Expectations, for example, are formed by anticipating the preferences of others who, in turn, are anticipating the preferences of those others as well, and so on and so on.¹⁰ And the orientation of government officials toward the preservation and enhancement of state authority is a partial product of their expectations that others share their orientation. In this and many other senses, expectations and preferences are inextricably intertwined.

On the Notion of Sovereignty

More importantly, both historical institutionalists and positive theorists have overlooked the way in which the production of sovereignty drives their respective analyses. The orientation of individuals toward the state, for example, is driven in large part by expectations that others will regard the state and its rulers as legitimate. Legitimacy is conferred upon the state when it is aligned with what Geertz refers to as a society's "sacred center," and the ongoing production of legitimacy, by way of that alignment, drives the strength of citizen expectations and thus underpins sovereignty. If the state is effectively associated with the "sacred center," rebellion and treason are simply not conceivable as political options. Put another way, citizens are not simply "other-regarding" as they calculate whether or not overthrowing the state is (or should be) a possibility. They are also (and often primarily) emotionally aligned with the state because of its association with purposes and goals that they independently value in and of themselves.¹¹

Similarly, in their design of political institutions that would strengthen the authority of state agents, positive theorists have slighted what originally conferred (and continues to confer) authority upon those institutions in the

10. Anarchists, in their millennial dreams of freedom, imagined that the chain of anticipations that so rooted the state in the consciousness of the people could be instantaneously broken by a violent act such as an assassination of a political leader or the mass eruption of a general strike.

11. The distinction between sovereignty, on the one hand, and legitimacy, on the other, should be clarified. Sovereignty has two necessary components: a claim by a ruler to ultimate political authority within a territory and the evidenced acquiescence in that claim by the subject people. Legitimacy only refers to the second of these components. As a consequence, to say that a ruler is "sovereign" is necessarily to say that the subject people obey the ruler's commands and otherwise recognize his or her authority (and thus to say that the ruler's authority is regarded as "legitimate"). Although legitimacy, in this sense, can arise out of fear alone (e.g., expectation that disobedience will be certainly and severely punished), the discussion in the text is limited to cases in which the subject people, at least in part, obey because they recognize the state's asserted association with some other normatively valued purpose or goal.

first place.¹² The “will of the people,” for example, is simply regarded as an empty phrase whose only importance is to give ritual form to a mechanistic process of counting votes.¹³ As a result, sovereignty (in the sense of the state’s association with a fervently held attachment to a goal or purpose of a political community) has been largely ignored ever since the state was “brought back in.” I am suggesting here that the production of sovereignty must also be brought back in as well; either that or it is going to crash the party anyway.

As the litmus test for the health of the state, sovereignty is ultimately and foundationally about death.¹⁴ This was clearly the case for Hobbes, who had an exact notion of “the sovereign” and the social compact that commanded obedience from the subject. For Hobbes, there was (is) a bargain between the sovereign and the subject in which the former protects the latter from the hazards of an anarchical “state of nature” composed primarily of other violent individuals. This is a moral pact in which, under the discipline of certain principles and logics, the individual judges for himself whether the sovereign deserves obedience. The ultimate test is individual survival, whether obedience increases or decreases the likelihood of death.¹⁵ But the subject must, in fact, be willing to

12. Contrasting his approach with Geertz’s view that “public ceremonies . . . sustain a ruler’s authority . . . by creating meaningful associations with the sacred,” Michael Chwe contends that these rituals are important because “they form public knowledge” in the other-regarding sense described in the text. He thus contends that they are important not because they heighten “emotion” but because they enter into the “cold,” rational calculations of citizens. *Rational Ritual: Culture, Coordination, and Common Knowledge* (Princeton, NJ: Princeton University Press, 2001), 4. Networks of “common knowledge” created out of political rituals and symbolic processions do shape a shared recognition that others are oriented toward rulers and institutions as sovereign authorities. But that kind of common recognition, as a factor in the formation of political attitudes, is most influential in periods of political stability. In other periods, both challenges to and defense of sovereign authority must invoke symbols and purposes that can command emotional allegiance. And that emotional allegiance arises out of effective contestation for a society’s “sacred center.”

13. The unacknowledged normative implications of such a process can be seen, for example, by comparing modern electoral democratic practices to Rousseau’s determination of the “general will.” For the latter, see Michael Lessnoff, ed., *Social Contract Theory* (New York: New York University Press, 1990), 116–18.

14. Sovereignty in all these senses has waxed and waned throughout history. Before the American Civil War, for example, South Carolina was clearly sovereign; men would and did die for the state. And the other states were sovereign as well — so much so that the men marched into battle under the flags of their states in regiments composed of their neighbors. They would die for these flags, rather than allow the men of other states to capture them as trophies. The Civil War was a horrendous conflict in which contested sovereignty was on full public display in a manner never to be repeated. In the twenty-first century, however, no one would die for any of the fifty states and it has become (largely) unthinkable that anyone would ever sacrifice themselves to preserve or overturn the present relationship between the individual states and federal power. The individual American states are no longer sovereign because no one will die for them anymore. They thus fail the litmus test of sovereignty.

15. The sovereign could hypothetically abdicate the power and responsibilities of his office, thus plunging his subjects back into the state of nature, but such an act would violate the “sovereign’s obligation by the law of nature.” More typically, subjects are released from an obligation to obey the sovereign when he “no longer protects the life of the subject.” In creating the sovereign, people are

risk and, at times, sacrifice his own life for a sovereign that upholds his end of this bargain.¹⁶

For Max Weber, sovereignty could be observed as an empirical fact evidenced through practice. Either the ostensible citizens of a state obeyed or they did not. They could also love, hate, despise, respect, or be indifferent to what the state might be, but this was incidental to the conception of sovereignty. For a state to be a state, they simply had to obey and, in practice, this meant that they did not collectively resist the state's monopoly on and use of violence.¹⁷ However, Weber was aware that what conferred sovereignty was the association of the state with a purpose or goal over and beyond the production of a stable political order. And it was that purpose or goal that, in the final analysis, enabled the state to command that citizens kill and be killed.

Walt Rostow offered a more contemporary conception of sovereignty when he said: "National sovereignty means that nations retain the ultimate right—a right sanctioned by law, custom, and what decent men judge to be legitimacy—the right to kill people of other nations in defense or pursuit of what they judge to be their national interest."¹⁸ For Rostow, the state is an international actor (a nation) which claims, in a world of other such nations, the right to kill the citizens of other states through processes and routines (a code of war) recognized as proper or at least permissible by other nations. Sovereignty here is mutually conferred through international consent, agreement, and practice. But how nations separately conceive of their "national interest" is left up to them. While the term "interest" might suggest some kind of international consensus on what the proper basis of sovereign claims should be, as an empirical fact these vary almost as widely in the contemporary world as they have at any time in the past.

In sum, for Hobbes, sovereignty is the result of a calculated and contingent bargain between the individual and the sovereign. At the (sacred) center of that bargain is social peace, a peace with which the sovereign must be aligned or he

motivated "by the fear of death and the desire to avoid death. . . . Peace is the means to these ends, and the creation of a society the means to peace." Thus, death, in the form of a return to the state of nature, underpins the sovereign's authority, imposing both an individual and a collective condition upon sovereignty. Maurice M. Goldsmith, *Hobbes's Science of Politics* (New York: Columbia University Press, 1966), 180–86.

16. For a discussion of the complex and sometimes apparent contradictions in this contractual bargain, see Bargu, "Martyrs of Hunger," Chapter 1: "The Sacrificial Contract."

17. Weber defines a state as a "compulsory political organization with continuous operations" in which an "administrative staff successfully upholds the claim to the *monopoly* of the *legitimate* use of physical force in the enforcement of its order" (emphasis in the original). Max Weber, *The Protestant Ethic and the Spirit of Capitalism*, trans. Talcott Parsons (London: Routledge, 1992), 54. Here I am interested in both the normative basis of the claim that the state asserts and the violence that underpins the sovereign authority that results from a successful assertion of that claim.

18. W. W. Rostow, *The Stages of Economic Growth: A Non-Communist Manifesto* (New York: Cambridge University Press, 1990), 107.

can be overthrown. For Weber, sovereignty is an empirical fact emerging from the collective behavior of an ostensible citizenry. That empirical fact necessarily presumes a state's alignment with the sacred center. For Rostow, sovereignty is a mutually conferred bundle of rights assigned to nations in the world at large. Here the domestic production of sovereignty is a necessary condition for the international recognition of sovereignty. All of these conceptions of sovereignty reek of death. But they construct death as either a clause in a social contract, something only a state inflicts, or an internationally recognized prerogative.

Death, in fact, is more fundamentally implicated in sovereignty than any of these conceptions acknowledge. People never sacrifice their lives for the sake of a social contract, for the maintenance of the state's monopoly on violence, or as a response to the exercise of an internationally recognized state prerogative. They sacrifice their lives for beliefs and emotional attachments with which these other, and thus more superficial, things are seen as aligned. The path-dependent expectations that make a state an unchallenged and unchallengeable feature of social reality ultimately rest on death in that people must be willing to die for the purposes and goals that the state represents.¹⁹ And, like atoms and other forces of nature, the sovereign foundation of the state is only truly revealed if it is smashed.

19. Benedict Anderson, in his discussion of the Tomb of the Unknown Soldier, similarly posits the intertwined "cultural roots of nationalism with death." Later, he notes that "nationalism," a social construction whose emergence almost coincided with the enlightenment, was an imagined "invention" for which "people are ready to die." Nations, as he observes, "inspire love, and often profoundly self-sacrificing love." *Imagined Communities: Reflections on the Origin and Spread of Nationalism*, rev. ed. (London: Verso, 2006), 10, 141.